AMERICANS AGAINST
NO-FAULT DIVORCE

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Mutual Consent for No-Fault Divorce Act

Summary, Rationale, and Legal Basis

Prepared for the 90th Texas Legislature

§ 6.001 entitles one spouse to obtain a divorce for any reason and for no reason at all solely upon their unilateral declaration that the marriage has become insupportable.

Herein presents a single, narrow amendment to Texas Family Code § 6.001 that would convert the no-fault grounds from a unilateral declaration to mutual agreement, while preserving every conduct-based ground for divorce that requires evidentiary findings.



September 20, 2026

Executive Summary

The proposal in one sentence

This document serves as a reference guide for a proposed bill that effectuates a single, narrow amendment to the Texas Family Code Section 6.001—divorce on grounds of insupportability. It converts the no-fault ground from a power dynamic one spouse holds absolute (unilateral will) into a decision both spouses make together by joint petition (mutual agreement), while leaving every fault and separation ground fully available (evidentiary findings of misconduct or condition).

What it does

A divorce granted without regard to fault would require the joint written petition of both parties. That is the whole of the operative change. Sections 6.002 through 6.007, which cover cruelty, adultery, felony conviction, abandonment, three-year separation, and confinement, remain untouched.

What it does not do

This traps no one in an unsafe marriage. A spouse facing cruelty, adultery, abandonment, felony conduct, family violence, or prolonged separation may still file and obtain a divorce, may still obtain a protective order under Title 4, and may still obtain the waiting-period waiver. The three-year living-apart ground remains a viable release that requires no one's consent.

Why it matters

Under current law the divorce decree is mandatory the moment one party, and one party alone, alleges insupportability, evidentiary facts are stricken from the pleadings under Section 6.402(c), and the other spouse's consent is irrelevant. The court receives no evidence, applies no standard, and decides nothing. A judicial inquiry has been converted into an administrative act with a predetermined outcome. This bill restores real judicial proceedings while preserving every legitimate exit.

It answers a standing Republican Party of Texas mandate

Plank 211 of the 2026 GOP Platform urges the Legislature to rescind unilateral no-fault divorce laws. Requiring mutual consent for the no-fault ground, while preserving every conduct-based exit, is the precise and literal meaning of rescinding *unilateral* no-fault.

Cost, administration, and legal footing

There are no new proceedings and no new state costs. The change operates inside the existing divorce docket and should reduce frivolous filings that a reluctant spouse cannot presently prevent. The State holds plenary authority over marital status and its dissolution, confirmed in Maynard v. Hill, 125 U.S. 190 (1888), and no court has recognized a federal right to divorce on demand, per Sosna v. Iowa, 419 U.S. 393 (1975).

The ask

Sponsor and file the *Mutual Consent for No-Fault Divorce Act*. The complete rationale, authorities, and answers to every anticipated objection follow in this packet, and the full text of the bill is provided on the very last page.

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PART I · THE PROPOSAL AT A GLANCE

1. The Essentials

This memorandum explains what current Texas law does, why it is defective in principle, and how the attached proposed bill corrects it with a single narrow change. The essentials sit on these first pages. The historical, philosophical, and economic case follows for those who wish to read further.

- **What the proposed bill does.** It changes one thing. A divorce granted without regard to fault, the so-called "no-fault" or "insupportability" ground, would require the joint petition of both spouses. Every other ground stays exactly as it is today.
- **What it does not do.** It traps no one in an unsafe marriage. A spouse facing cruelty, adultery, abandonment, felony conduct, family violence, or prolonged separation may still file and obtain a divorce under Sections 6.002 through 6.006, may still obtain a protective order under Title 4, and may still obtain the waiting-period waiver. The three-year living-apart ground in Section 6.006 remains a viable release that requires no one's consent.
- **A change of kind, not of degree.** No-fault divorce has changed the fundamental character of civil marriage. It did not merely make divorce easier along a line running from hard to simple. It created a different species of divorce. There are in truth three categories, not two. Conduct-based divorce, which requires proof of a recognized social harm. Mutual no-fault divorce, which requires the agreement of both parties. And unilateral no-fault divorce based on one party's declaration, which requires neither cause nor consent. The proposed bill removes only the third.
- **What it fixes.** Under Section 6.001 the divorce decree is mandatory once a party alleges insupportability, evidentiary facts are stricken from the pleadings under Section 6.402(c), and the other spouse's consent is irrelevant. The structural design of the statute is unilateral in essence because it refers to either party not both. Thus, the factual circumstances in any given case are irrelevant to the outcome. The court considers no evidence, applies no standard, and decides nothing. A judicial inquiry has been converted into an administrative act with a predetermined outcome.
- **Why marriage is different.** Alternatives already exist for those who wish to enter a freely dissoluble bond. Dating, courtship, cohabitation, friends-with-benefits, private contracts, and other private arrangements may each be entered and exited at will. Marriage occupies its distinct place precisely because it is enforceable, because it binds in law. Its function is to protect people, to some degree, from their own transient impulses. A marriage either party may singularly end at will offers nothing the non-marital alternatives do not.

- **It aligns with stated Texas policy.** The Texas Family Code already declares, in its Public Policy subchapter, that it is the policy of this state to preserve and uphold each marriage (Section 1.101), a policy it backs with a sixty-day waiting period (Section 6.702) and court-ordered reconciliation counseling (Section 6.505). The Republican Party of Texas has for several platform cycles, including the 2026 Platform and Resolutions, called for this reform. Plank 211 urges the Legislature to rescind unilateral no-fault divorce laws. A mutual consent requirement for the no-fault grounds satisfies that policy and answers Plank 211 precisely.
- **Cost and administration.** No new proceeding and no new state cost. It operates inside the existing divorce docket and, if anything, should reduce frivolous filings that a reluctant spouse cannot presently prevent.
- **Legal footing.** The State holds plenary authority over the marriage status and its dissolution, confirmed in Maynard v. Hill, 125 U.S. 190 (1888), and no court has recognized a federal constitutional right to divorce on demand, per Sosna v. Iowa, 419 U.S. 393 (1975).

2. The Republican Party of Texas Has Called for This

Plank 211 of the 2026 Platform and Resolutions of the Republican Party of Texas reads as follows:

> *211. No-Fault Divorce…We urge the Legislature to rescind unilateral no-fault divorce laws…*

Two points deserve emphasis. First, the plank is not new. The Party has identified no-fault divorce as a target for several years running. Second, and decisively, the 2026 language qualifies the target as *unilateral* no-fault divorce. That is precisely what this proposed bill addresses. It converts the no-fault ground from an absolute power one spouse holds by themselves into a decision both spouses must make together, which is the literal meaning of rescinding unilateral no-fault.

3. The Statute in Question

Sec. 6.001. INSUPPORTABILITY. On the petition of either party to a marriage, the court may grant a divorce without regard to fault if the marriage has become insupportable because of discord or conflict of personalities that destroys the legitimate ends of the marital relationship and prevents any reasonable expectation of reconciliation.

4. The Proposal in One Paragraph

The remedy is narrow and stays within the State's plenary authority over marital status. It clarifies and restores mutual consent as the basis of a divorce granted without

regard to fault (conduct), so that a status entered by the agreement of both parties is dissolved on that same agreement, while preserving every conduct-based (fault) and separation exit for the spouse who has a publicly recognizable reason to leave. In doing so it restores the judicial proceeding itself, returning to the court a real question to decide when a ground is contested and returning to the Legislature the role of governing by general standard rather than delegating the sovereign power of dissolution to individual private will. It does not attempt to rebuild by statute the whole moral architecture the framers discarded. It does the one thing a single amendment can do, which is to return to the marriage status its defining feature, that it binds until both who made it agree end it, or until one can show a ground the law recognizes as a public social harm. It adds no proceeding, imposes no new cost, traps no victim, and answers precisely the Republican Party of Texas's Plank 211 call to rescind unilateral no-fault divorce.

5. Three Species of Divorce, Not Three Degrees of Ease

No-fault divorce (insupportability) is usually defended, and usually attacked, as though it merely made divorce *easier*, a change of degree along a line running from difficult-to-obtain to easy-to-obtain. That framing concedes too much and mischaracterizes what has occurred. A change of degree would have left the institution intact while lowering the threshold of exit—a liberalization if you will. Unilateral no-fault, however, eliminates the barrier to exit altogether. This is something else entirely.

It is clearer to speak of three species. The first is conduct-based divorce (fault), in which one spouse must prove a recognizable social harm such as cruelty, adultery, or abandonment. The second is mutual no-fault divorce, in which both spouses agree together that the marriage is over and ask the court to end it. The third is unilateral no-fault divorce, in which one spouse alone is entitled to dissolve the marriage on a bare subjective assertion, without cause, without the other's consent, and without any available defense offered to the defendant. These are not three points on a single scale of ease. They rest on three different theories of what a civil marriage is and who may end it.

This distinction is the hinge of the entire reform. This proposed bill eliminates only the third species. It keeps conduct-based (fault) divorce untouched and, by requiring the joint petition, it restores *mutual* no-fault divorce as the no-fault path. A spouse who genuinely wants out is never confined to the mutual track, because every fault and separation ground remains available for that spouse to initiate.

It is worth asking directly whether the drafters of the *Uniform Marriage and Divorce Act* (the model for America's no-fault divorce laws) ever considered the third species as a distinct question at all. The surviving debates, discussed in the next section, center overwhelmingly on whether a judge could refuse a divorce when both spouses agreed the marriage was over. That is a debate about mutual no-fault. There is little indication the drafters separately confronted the very different question of whether one spouse alone, over the other spouse's objection and without cause, should hold unilateral power to dissolve the marriage and the family unit. If the historical record bears this out, then unilateral no-fault was never actually debated and adopted as such. It rode into the law inside a reform aimed at something else, mutual dissolution, and picked up the same legal treatment without ever being examined on its own terms. A rule adopted without anyone examining its central feature is not entitled to the presumption that its drafters weighed the costs. This is itself a reason to look again, and more closely, on the merits, at a question the Legislature has never squarely asked.

6. Current Law and How Section 6.001 Operates

Texas Family Code Section 6.001 entitles one spouse, and one spouse alone, to obtain a divorce on the ground of insupportability, for any reason and for no reason at all. The entitlement is unilateral in structure, resting on the petition of "either" party, and absolute in effect, because the decree is "mandatory when [one] party to the marriage alleges insupportability…" See Cusack v. Cusack, 491 S.W.2d 714 (Tex. Civ. App. Corpus Christi 1973).

Texas is not an outlier. Courts applying the equivalent no-fault ground elsewhere describe its operation in the same terms. The California courts have acknowledged that the standard depends upon the "subjective attitude" and "subjective state of mind of the parties." In re Marriage of Walton, 28 Cal. App. 3d 108 (1972). A Nebraska court held that, "the allegation that a marriage is 'irretrievably broken' is the sole allegation necessary for dissolution of a marriage." Else v. Else, 219 Neb. 878 (1985). And the New York courts describe their own no-fault statute with blunt candor, stating that there are no defenses and no triable issues of fact, and that the statute's drafters were aware "there are no defenses and no triable issues of fact" and "no defense to the no-fault ground." A.C. v. D.R., 32 Misc. 3d 293 (N.Y. Sup. Ct. 2011); Palermo v. Palermo, 2011 NY Slip Op 33607 (N.Y. Sup. Ct. 2011). The judicial construction of these statutes, across jurisdictions with different legislative histories, converges on the same description Texas courts have given Section 6.001, an allegation that cannot be contested and a divorce decree that cannot be withheld or denied.

Three features together make the outcome predetermined for the party who wants it. First, the statute operates "without regard to fault," so it does not regulate conduct but instead endorses a viewpoint—the opinion, belief, attitude, or preference—that the marriage has become *insupportable*. Second, evidentiary facts are irrelevant, because a petition is sufficient if it recites the statutory language as a legal conclusion under Section 6.402(a), and the court must strike any allegation of evidentiary fact from the pleadings under Section 6.402(c). Third, the second spouse's consent carries no weight and receives no consideration. Taken together these provisions reduce the judiciary to a ministerial agent (a rubber stamp) executing the Legislature's delegation of sovereign authority to the private will of the petitioner.

The second feature deserves a closer look, because its operation is easy to understate. Section 6.402(c) does not merely limit what a court may consider. It removes the possibility of any inquiry whatsoever into whether the marriage has in fact become insupportable, or whether the other elements of the ground are actually present. What the statute permits, and what courts in practice accept, is the bare mechanical recitation of the magical words of the statute back to the court as a legal conclusion. The petitioner need not show that discord exists, only assert that it does, in the statute's own language. This collapses two things that ordinary legal process keeps separate in the pleading, the

legal conclusion it seeks and the factual basis that would ordinarily have to support it, into a single act of assertion. A petitioner does not plead facts to earn a legal conclusion. The petitioner simply speaks the conclusion into existence, and the law treats the speaking as sufficient. This does not give rise to evidentiary economy. It is the elimination of the fact-finding function that separates a court from a registry.

It is also worth being precise about what kind of question a divorce ground actually presents. A ground for divorce is not a private grievance in the way a breach-of-contract claim is a private grievance between two commercial parties. It is a legal question about whether a state-conferred status, the status of marriage, should be dissolved. Because the status is public in origin, the question of whether cause exists to end it is a public and legal question, not a private one, even though it arises between two private people. Section 6.001 answers that public and legal question by handing it entirely to private assertion, which is precisely why the ordinary machinery of adjudication, pleading facts and proving them, has nothing left to do.

Although other grounds exist, insupportability is the catch-all cause of action and the preferred ground, and it confers a privilege and immunity no other divorce statute in Texas grants. It has rendered the remaining grounds effectively obsolete through desuetude, that is, disuse in practice, so that insupportability is now the sole prevailing ground in the State. The other grounds survive mainly as historical relics and tactical instruments, pleaded to threaten and to gain negotiating leverage in custody and property disputes. The statute's verb "may" ("the court *may* grant a divorce…") appears to leave the court room to refuse. The next section shows that the appearance is illusory.

Courts in other no-fault states describe the same collapse of the fault grounds into disuse. A New York court, surveying its own docket after that state adopted unilateral no-fault, observed that nearly all divorce actions, contested and uncontested alike, are now commenced on the unilateral no-fault ground even though the older fault grounds and the 1969 *mutual* no-fault ground remain on the books, because litigants overwhelmingly choose a sworn statement over an evidentiary trial. Stancil v. Stancil, 47 Misc. 3d 873 (N.Y. Sup. Ct. 2015). The same court noted that an irretrievable breakdown, like Texas' insupportability, is in the end a subjective state-of-mind, in its phrase "in the eye of the beholder," rather than a fact the court can independently test. The lesson for Texas is that once a unilateral no-fault ground exists, it does not merely take its place among the others. It swallows them, and the fault grounds survive as formalities that the overwhelming majority of petitioners have no reason to use.

7. Judicial Discretion and the Illusory "May"

The framers of the *Uniform Marriage and Divorce Act*, the model for Texas' no-fault ground, understood that the reform raised a threshold question. Would a judge retain any power to deny a divorce, or would the court be reduced to a rubber stamp. It was

among the most contested issues in the drafting debates. The Committee first defended a genuinely judicial role, framing the act in terms of judicial control and judicial discretion precisely to avoid making the court a mere registrar of a consent divorce, and Judge Gibson warned that stripping discretion would leave the court acting in a ministerial capacity to carry out a clerk's function. The opposing view prevailed in substance. Commissioners argued that a judge should not be able to tell two spouses their marriage was not broken down when both say it is, and the fight narrowed to the choice between "shall grant" and "may grant," preserving only what one member called precious little room for discretion. Critically, the drafters supplied no standard by which a court could refuse a petition, so any denial necessarily rests on a judge's personal view rather than on law, which is the very arbitrariness the reform set out to abolish. The retained discretion was therefore illusory. The word "may" survived as a political and rhetorical accommodation to secure passage, not as a real power to deny. Texas inherited that empty formalism and hardened it, so that under Section 6.402(c) and Cusack v. Cusack the decree is mandatory once insupportability is alleged and the statutory conditions are met by virtue of that allegation, leaving the "may" of Section 6.001 a word without operative meaning. The same conclusion appears from the opposite side in In re Marriage of Beach, 97 S.W.3d 706, 708 (Tex. App.—Dallas 2003, no pet.), where a spouse who opposed the divorce and asked the court to order reconciliation was refused, the court holding that no spouse has a legal duty to reconcile and that none can be compelled to remain married. When one spouse may always obtain the divorce decree and the other can do nothing to prevent it, the word "may" governs nothing.

A further proof lies in the denial of a jury trial on the question. The law offers no triable issue on insupportability, because there is nothing for a fact-finder to decide. That absence is itself the confession. Where there is no fact that could change the outcome, there is no adjudication, only registration.

8. From Judicial Inquiry to Administrative Act

The deepest change wrought by unilateral no-fault divorce is not in degree but in species, and it is a change in the nature of the proceeding itself. A divorce suit once existed as a judicial inquiry. The court asked a real question as to the underlying cause of action for divorce, received evidence, measured that evidence against a legal standard, and rendered a judgment that could come out either way. The outcome was not known in advance because the inquiry was genuine. Under Section 6.001 nothing of this remains. The court considers no evidence, because evidentiary facts are stricken. It measures nothing against a standard, because the statute supplies none that a court may use to refuse. It renders no reasoned judgment in any meaningful sense, because the decree is mandatory the moment the allegation is made. What is left is not adjudication but registration. The proceeding has been converted from a judicial inquiry into an

administrative act with a predetermined outcome, and the judge, stripped of anything to decide, has become the clerk who records the petitioner's decision as to the grounds.

9. The Vanishing Jury. How the Courts Confirmed There Is Nothing to Try

Texas is one of few states that expressly guarantee in its Family Code the right to jury trial in divorce cases, under Section 6.703. If insupportability were a genuine question, a spouse who contests it could put it to a jury. The reported cases show what happens when spouses try, and the pattern is itself proof that nothing is actually being decided.

In the earliest years the ground looked like a real fact question. In Cusack v. Cusack, 491 S.W.2d 714 (Tex. Civ. App. Corpus Christi 1973), a jury actually found a marriage insupportable, and the courts described the issue as one for the trier of fact. But by In re Marriage of Richards, 991 S.W.2d 32 (Tex. App. Amarillo 1999), a respondent who demanded a jury to oppose the divorce was refused one, and the appellate court held that although the three elements of insupportability are indeed fact questions, so that denying the jury was error, the error was harmless and inconsequential, because the respondent had no controverting evidence to offer and an instructed verdict for the petitioner would have been proper regardless. Read that holding closely. The court agreed the statute states fact questions, agreed the respondent was wrongly denied a jury, and then held that it made no difference, because there is nothing a respondent can say that would change the outcome. That is a judicial admission that the ground cannot be contested.

Georgia tells the same story from the opposite direction. In Harwell v. Harwell, 233 Ga. 89 (1974), a jury granted one spouse a no-fault divorce over the other spouse's opposition. Two years later, in McCoy v. McCoy, 236 Ga. 633 (1976), a trial judge who had refused to grant a no-fault divorce, on the reasoning that a marriage is not broken merely because one spouse says it is, was reversed. The state's high court held that once one spouse swears the marriage is irretrievably broken, the other's hope of reconciliation cannot defeat the divorce. The dissent saw precisely what had occurred and said so, objecting that the court had *de facto* converted the statute's "may" into "shall" without any authorization from the legislature. A judge who tried to exercise the very discretion the statute appears to grant was overruled for doing so.

New York went furthest of all. When it adopted unilateral no-fault divorce in 2010, a jury-trial statute still on its books, Domestic Relations Law Section 173, appeared to guarantee a trial on the grounds. One trial court, in Strack v. Strack (2011), held that the jury right survived and ordered a trial, but it was the outlier. The controlling decisions, Palermo v. Palermo (2011) and Trbovich v. Trbovich (2014), held that the opposing spouse may not litigate the other's sworn statement at all, and the court in A.C. v. D.R. (2011) stated the rule with unusual candor, that there are no defenses and no triable

issues of fact, and that staying married against the wishes of a spouse who has sworn the marriage is over is not a vested right. New York thus kept the right to jury-trial on the books and then construed the no-fault ground to leave that right nothing to operate on.

Put these lines of authority together and they establish, from the mouths of the courts themselves, the central claim of this memorandum. A right to a jury on the ground exists on paper in Texas and Georgia and once seemed to exist in New York, and in not one modern reported case has it changed a single outcome, because the ground admits of no defense and no contrary evidence. Where a right to be heard is guaranteed but can never truly matter in consideration, what is being conducted is not a trial. It is a registration with a hearing bolted on for the sake of appearances.

10. The Purpose of Fault. A Barrier to Exit, Not a Punishment

Conduct-based (fault) divorce is widely misunderstood, by its defenders as well as its critics, as a machinery for punishing a guilty spouse. That private function was real, but it was incidental. The larger purpose of requiring a cognizable cause of action was public and pedagogical. By naming the conduct that would justify dissolving a marriage, chiefly adultery, cruelty, and desertion, the law articulated and taught a public standard of what spouses owe one another and what the community expects of the married parties.

Fault served two public functions at once. It operated as a barrier to exit, raising the threshold of dissolution so that marriage remained a serious and durable undertaking rather than a convenience. And it operated as a moral frame for society at large, a standing public statement, fixed in law, of the norms that hold a household and by extension a society together. The individual case was merely the occasion. The instruction of the public, and the deliberate obstacle placed in the path of exit, were the point.

This is why the common objection that fault-based grounds were mere instruments to shame spouses misses the target. The barrier was never chiefly about assigning individual guilt. It was about making the marriage bond difficult to sever, so that couples would invest in it, forbear within it, and repair it rather than abandon it at the first hardship. When unilateral no-fault removed the barrier altogether, it did not merely retire a punishment. It dismantled the one feature that made the commitment binding. It abolished marriage as a legally enforceable status.

The framers of no-fault understood the teaching function and set out to abandon it anyway, on the theory that the law should not judge marital morality. What they never did was replace the discarded standard with any positive principle. They assumed that withdrawing the law's moral judgment would leave a neutral procedural remainder. It did not. Abdication is not neutrality. A law that once articulated a public norm and then deletes it does not fall silent. It teaches the opposite lesson, that the commitment was

never binding and that the obligations it once named were never real; that the State is indifferent to immoral acts that corrupt society generally, and that the state is indifferent to any distinction between victims and perpetrators of domestic violence. The vacancy was filled by the individual will of whichever spouse wishes to leave.

A common defense of no-fault points to judicial economy, the claim that fault-based trials consumed scarce court time on contested factual disputes about who did what to whom, and that removing the ground freed the courts for other work. The claim does not survive contact with what actually happens in a modern divorce docket. The fact-finding that fault once required at the front end of the case (cause of action), has not disappeared. It has shifted to the back end, into custody and property disputes, where it is often more extensive and more expensive than a fault trial ever was. Courts routinely delegate that fact-finding to guardians *ad litem*, custody evaluators, psychologists, social workers, counselors and mediators, retired judges, parenting facilitators, and special masters—an entire apparatus of government functionaries doing precisely the work of hearing evidence and reporting findings that a judge would once have done more swiftly at the divorce trial. If eliminating fault had genuinely reduced the burden on judicial resources, this outsourced apparatus would be unnecessary. Its existence and growth are evidence that no-fault relocated the burden rather than alleviated it, while removing it from the one place where the parties' own conduct still mattered, the underlying ground for divorce action.

11. Marriage as a Matter of Public Concern

Marriage as a civil institution is not merely a private romantic arrangement that the State happens to register. It is a public institution the State creates and licenses because it serves ends beyond the couple themselves. It orders the stable formation of households, secures a framework for the protection and rearing of children, settles questions of property and inheritance, and creates enforceable duties of mutual support that relieve the public of burdens it would otherwise bear. Above all it transmits a social norm of obligation. The word “permanence” is not quite precise enough to carry the point, since no institution can guarantee that a relationship will last forever. What the status actually supplies, and what distinguishes it from an informal arrangement, is stability, predictability, and enforceability against arbitrary and capricious dissolution, a set of expectations that hold regardless of either party’s changing preference, and that each spouse may rely upon and invest against. The status exists in order to bind, converting a private affection into a public commitment that the State community recognizes and honors.

That the State already treats obligation as running independent of the marital label is visible in an area far removed from divorce proceedings. A parent who was never married to the other parent can still owe, and still pay, child support, because the underlying obligation runs to the child’s need and to the parent-child relationship, not to whether a marriage certificate exists. This shows that the State is entirely capable of grounding a legal duty on something more than momentary consent or the presence of a license. It has simply declined to do the same for the marital relationship itself at the moment of its dissolution, even though marriage is the one status the State created for the express purpose of binding two adults together.

A society requires some arbiter to resolve disputes over whether a marriage bond has been broken and on what terms it should end. For most of Christian history that arbiter was the Roman Catholic Church in the West and the Eastern Orthodox Church in the East. The medieval and early modern Latin Church held near-exclusive jurisdiction over marriage and its dissolution, adjudicating claims of nullity and separation through ecclesiastical courts under a settled body of canon law. That jurisdiction did not pass to the state gradually or by accident. It was the Protestant Reformation, beginning with Martin Luther’s marriage ordinances for Saxony and the German territories, that first moved marital adjudication from Church courts to civil institutions, on the theory that marriage was a civil matter properly judged by civil magistrates applying defined legal standards. England’s break with Rome under Henry VIII, precipitated in part by a marital dispute the Roman Catholic Church would not resolve to the King’s satisfaction, is the most familiar instance of the same jurisdictional shift, ecclesiastical authority over

marriage giving way to the authority of the civil sovereign. The French Revolution and the Bolshevik government after it completed the transfer, placing marriage and its dissolution entirely within the civil courts and, in the Bolshevik case, stripping the transferred authority of any substantive standard at all. The historical lesson is not that Church jurisdiction was flawless. The lesson is that some public arbiter, bound by a public standard, has always been considered necessary, and that the modern civil courts inherited that necessary role from the institutional Church rather than inventing it. Unilateral no-fault divorce is the point at which the civil courts, having inherited the office of arbiter, quietly vacated it.

The U.S. Supreme Court said as much long ago, describing marriage as "creating the most important relation in life and as having more to do with the morals and civilization of a people than any other institution," always "subject to the control of the legislature." Maynard v. Hill, 125 U.S. 190, 205 (1888). A status with this public character cannot be treated, at the moment of its dissolution, as a purely private matter to be ended on one party's say-so. The question the State must answer when it sets the terms of dissolution is therefore not administrative but definitional. It is the question of what marriage, as a legal status and civil institution, is for.

This is not abstract doctrine. It is settled law, and a Texas lawmaker can rely on it. In Baker's Executors v. Kilgore, 145 U.S. 487, 494 (1892), the U.S. Supreme Court, per Justice Harlan, described marriage as a civil institution and a status in which, in the words it adopted from the treatise-writer Bishop, "public interests overshadow private—one which public policy holds specially in the hands of the law for the public good, and over which the law presides in a manner not known in the other departments." The Court explained that the marital rights at issue there arose not from any private contract between the spouses or between a spouse and the State, but from a rule-of-law established by the legislature and resting alone upon public considerations arising out of the marriage relation. That is the whole point in a single sentence. The rights and duties of marriage are conferred by public law for public reasons, so the terms on which the status may be dissolved are a public question, not a private one, even though the marriage is lived by two private people.

12. Abdication of the State's Police Power Over Marriage

Because marriage is a public institution, the terms of its dissolution are an exercise of the State's police power, its authority to regulate conduct in the interest of public order, morals, and welfare. Conduct-based or fault-based divorce was such a regulation. It defined the conduct that would and would not justify severing a state-created status, and it made the courts the instrument of that public standard.

Unilateral no-fault divorce does not regulate at all. It abdicates and forfeits that power. The State retains the machinery of dissolution, since only a court can issue the

decree, but it empties that machinery of any governing standard and hands the trigger to a private party. This is not a withdrawal of the State from family life. It is the surrender of the State's regulatory judgment while it keeps, and indeed expands, its administrative control over everything downstream of the divorce decree, namely custody, support, property, and the supervision of the divided household. The State stops governing the decision to dissolve and becomes instead the manager and ongoing supervisor of the wreckage. An abdication of the police power over the one question that defines the institution is not neutrality. It is misgovernment dressed as restraint.

The precise shape of that trade is worth stating plainly. No-fault privatized the grounds for divorce, removing the one place where the State once asked a substantive question, while simultaneously expanding governmental reach into everything the divorce produces, the custody schedule, the property division, the support order, and years of subsequent enforcement and modification proceedings. Government did not shrink. It relocated from the front of the case, where it asked whether dissolution was warranted, to the back of the case, where it now supervises, in granular and continuing detail, the lives of the people whose marriage it declined to inquire into at all. A reform genuinely aimed at reducing the State's footprint in family life would have shrunk both halves of that ledger. No-fault shrank only the half that asked a real question, while expanding the other half in unimaginable ways.

13. Rule of Law or Rule of Will. Plato, Aristotle, and Preference

Herein lies the philosophical core. Because Section 6.001 issues its decree on bare allegation, with evidentiary facts stricken and mutual consent irrelevant, the court applies no rule. It ratifies a want, a preference, an appetite. This is the classical distinction, drawn from Plato's *Laws* and Aristotle's *Politics*, between the rule-of-law and the rule-of-will; between a magistrate bound by reasoned standard and a power answerable only to preference. Aristotle put the point plainly, that to invest the law with authority is, it seems, to invest God and reason alone with authority, whereas to give power to a man is to introduce a beast, for desire is a wild thing and passion perverts the minds of rulers even when they are the best of men. Law, on this account, is reason unaffected by desire. A command that tracks nothing but one party's desire is, by definition, not law.

An adjudication whose outcome depends entirely on what one party wants, and never on any measure the law supplies, is not adjudication at all. It is the will-to-power wearing the robe of a court. A statute that leaves the judge nothing to decide has, in substance, abolished the judgment it purports to require, and has replaced the rule of law with the rule of individual private will.

14. De Facto Legislative Divorce and the Dartmouth Reservation

Historically, the dissolution of an individual marriage was accomplished by the legislature itself, through a private or special bill, precisely because ending a state-created status was understood as a sovereign act requiring sovereign authority. Between roughly 1790 and 1850, hundreds of such legislative divorces were granted in states including Maryland, Pennsylvania, Delaware, and Virginia, acts of the legislature dissolving specific marriages by name. Such private acts came to be disfavored, because a legislature that dissolves one particular marriage is making a special law for a single case rather than a general law for all. As the nineteenth-century constitutional scholar Thomas McIntyre Cooley put it, a full and complete control of the marital relation left to the legislature's will, leads inevitably to the conclusion that a relation essential to organized civil society might be abrogated entirely, and single legislative divorces are but single steps toward that result. Our constitutional tradition insists instead that the legislature act by general and prospective rules and leave the granting-power to particular cases decided by the courts.

This is not merely historical color. It is settled law that the act of *granting* divorces is a judicial function, not a legislative one. In Bingham v. Miller, 17 Ohio 445 (1848), the Ohio Supreme Court held that granting a divorce is a judicial act, involving the adjudication of rights and the determination of facts in a specific controversy between specific parties, and that such an act cannot constitutionally be performed by legislative fiat. The court declared the legislature's decades-long practice of granting divorces unconstitutional, an assumption of a power the constitution had committed to the judiciary. Ohio's constitutional convention of 1850 to 1851 wrote Bingham's principle directly into the state constitution by prohibiting the legislature from directly *granting* divorces at all, a prohibition that spread to other states in the decades that followed (See Texas Const. Art. III, Sec. 56(13)). New York's Constitution declares that "no divorce shall be granted otherwise than by due judicial proceedings," (NY Const. Art. I, Sec. 9) and Pennsylvania's Constitution of 1874 likewise forbade the legislature from granting divorces (1874 Penn. Const. Art. III, Sec. 7), vesting that power in the courts. In Sparhawk v. Sparhawk, 116 Mass. 315 (1874), Chief Justice Gray struck down a Massachusetts statute that tried to convert existing interim divorce decrees into final ones by legislative command, holding that this would sever the bond of matrimony without judicial process, hearing, or decree. The distinction *Sparhawk* drew, between a legislature's power to define general grounds for divorce and the exclusively judicial power to adjudicate whether those grounds apply in a given case, is exactly the distinction unilateral no-fault erases.

Bingham's reasoning was addressed to a legislature acting directly, one statute dissolving one marriage. But its logic reaches just as far when the legislature accomplishes the same result indirectly, by writing a statute that hands every petitioner

the power to dissolve his own marriage without judicial inquiry. If a court exercises no genuine discretion, if it merely receives the petitioner's declaration and issues the decree, it is performing a ministerial function dressed as a judicial one, and the constitutional objection to legislative divorce applies with undiminished force. This was foreseen by the framers of the 1867-1868 New York Constitution when Mr. T.W. Dwight expressed concern for this tendency for the Legislature to accomplish indirectly what it is prohibited from doing directly: "Suppose we had only general laws, then the effort of an unscrupulous lobby would be to obtain special legislation under the guise of general law…if [a man] wishes to release himself from a hated marriage tie, he will seek to alter the general law of divorce. There are gentlemen who hear me who know that this kind of effort has been made already in our Legislature—an effort to obtain a general law to meet particular cases…".

Unilateral no-fault divorce reproduces the vice of legislative divorces while wearing the costume of a general law. On its face Section 6.001 is general, speaking to all marriages alike. But in operation it does not govern by a general standard at all. It delegates to each individual petitioner the power to obtain, in his own case, a result the law guarantees in advance, a result no court may withhold and no standard may condition. That a statute of general words produces, in every instance, an outcome fixed entirely by private will and immune from judicial refusal is precisely what it means to create a special law under the guise of a general one. The historical practice of legislative divorces dissolved one marriage by naming it. The contemporary unilateral divorce dissolves any marriage by having the *petitioner* name it. This is, fundamentally, a separation-of-powers and delegation violation. The Legislature has taken a function the state constitutional tradition assigns to the judiciary, the *individualized adjudication* of whether a marriage should be dissolved, and handed it instead to a private citizen defining for themselves *individualized causes*, leaving the courts a docket of decrees to sign rather than cases to decide.

This was foreseen at the founding of our constitutional law on marriage. In Trustees of Dartmouth College v. Woodward, 17 U.S. 518 (1819), the Court explained that a general divorce law does not impair the marriage contract but liberates one party because the contract has been broken by the other. Justice Story, concurring, drew the line finely. A law dissolving a marriage upon proof of a breach by one spouse enforces the obligations of the union and is unobjectionable. But he expressly reserved the very different case of a power to dissolve the contract without a breach on either side, against the wishes of the parties, and without any judicial inquiry to ascertain a breach. That reserved case is, in substance, the case Texas has adopted. Chief Justice Marshall framed the same reservation as a question left open for a later day, that "when any state legislature shall pass an act… allowing either party to annul [a marriage] without the consent of the other, it will be time enough to inquire whether such an act is constitutional." That day has arrived.

Story's reservation deserves to be stated in blunter terms than the opinion itself uses. A regime that empowers one spouse the ability to dissolve the marriage at will, over the other's objection, without cause and without any judicial inquiry, does not merely decline to enforce an obligation. It converts the non-consenting spouse into a party bound by duties the law will not let the other side escape until that other side chooses to release them, a one-sided bondage dressed as a mutual status. That is not too strong a word for a relationship in which one party holds an unconditional and unilateral power of release and the other holds none.

The reform also corrects a set of incentives that run well beyond the individual marriage. Where an exit is unilateral and available without cause, a prospective spouse has less reason to choose their partner carefully, since the legal commitment supposedly being made carries no more weight than an informal one. Restoring mutual consent restores an incentive to choose a partner wisely before marrying, precisely because the choice will actually bind. And because this proposed bill leaves every fault ground untouched, it creates no new incentive toward fabricated accusation. A spouse with a genuine grievance already has, and keeps, an unencumbered fault-based exit. The proposed bill changes nothing about the incentives surrounding true or false allegations of fault. It changes only the terms on which a marriage may be ended when no fault is alleged at all.

15. Big Government, Limited Government, and the Inescapability of Regulation

The reform will be met from two opposite directions, and both objections collapse into the same error. Some will say the State should get out of marriage entirely, and that a mutual consent requirement is more government, not less. Others will defend unilateral no-fault as the small-government position, a matter of leaving private parties alone. Neither slogan resolves the question, because the State unavoidably draws substantive lines around marriage and always has.

The clearest way to see this is to picture a family as a house. The lock on the door is the ground for divorce, the legal condition that must be met before anyone may enter and rearrange what is inside. Everything within the house, the property, the savings, the custody of the children, the ordering of a shared life, is what the State may reach only once the lock is opened. Fault and mutual consent are that lock. They keep the dissolution of the household, and the vast machinery of property division and custody that follows it, behind a door that opens only upon an intelligible condition. Unilateral no-fault removes the lock and bursts the door open. Once either of the spouses open the door at will, the State walks straight in and becomes the manager and supervisor of the family's most intimate affairs, the divider of its property and the arbiter of its children, in every case and on demand. The limited-government position is the lock. A meaningful ground for divorce is the one barrier that keeps the government outside on the porch rather than installed permanently inside the home.

The State forbids polygamy, child marriage, and incestuous unions regardless of the parties' consent. It licenses who may marry and on what terms. A government that polices the entrance to marriage cannot coherently disclaim all interest in the exit. No-fault's claim to neutrality is therefore selective and incoherent. It deregulates the way out while retaining the prohibitions on the way in, which exposes that the real dispute is never about the size of government but about which substantive limits are legitimate.

The libertarian instinct to get the State out of marriage mistakes the nature of the problem. Jurisdictions that weakened or abandoned formal marriage did not thereby free intimate life from law. They relocated the regulation, as the United Kingdom's expanding law of cohabitation, financial provision, and *de facto* partnership demonstrates. Wherever two lives are materially entangled, the State must allocate property, support, and parental duty when they separate. The only real choice is not whether the State regulates intimate association but on what principle it does so. Unilateral no-fault divorce answers that question by substituting one party's private will for any public standard, which is the largest and least accountable government of all, the

government of one person over and above their entire family with no rule to check this power.

There is a further and rarely noticed feature of this project, and it runs in two directions at once. On one side, unilateral no-fault strips marriage of the enforceable durability that once distinguished it from informal cohabitation, making the married state legally more like the unmarried one. On the other side, governments are now moving to impose marriage-like financial obligations on unmarried couples who never chose them. The United Kingdom is presently considering exactly this, a scheme under which cohabitants of a few years' standing would acquire claims over one another's property and income on separation, automatically and by operation of law, which a former chair of the Bar Standards Board has publicly called a profound constitutional change made with no mandate. Read together, the two movements share a single tendency, to erase the legal distinction between being married and not being married, dissolving marriage as a distinct status from one side while assimilating cohabitation to it from the other, thereby expanding government intervention all the more. A society that can no longer tell, in law, the difference between a marriage and any other living arrangement has not liberated marriage. It has quietly abolished it as a meaningful category. Restoring mutual consent to the no-fault ground is a modest step in the opposite direction, toward keeping marriage a status that actually means something the alternatives do not.

16. Incentives Matter. The Perverse Economics of Unilateral Exit

Legal rules are never neutral in their behavioral effects. A regime permitting either spouse to dissolve the marriage at will, for any reason or for no reason, removes every legal incentive to invest in, forbear within, or repair the relationship, and it rewards the spouse who defects first with the tactical advantages of the initial filing in custody and property—punishing the spouse who protests and designating them as obstructionists. Mutual consent for the no-fault path reverses these incentives, restoring a reason to bargain and reconcile rather than race to the courthouse, while leaving intact the immediate exit for any spouse with an actual grievance.

The deeper distortion lies in what unilateral exit does to the ancillary awards. When a spouse may leave for no cognizable reason and still claim a share of property, ongoing support, and the larger share of custody, the marriage is converted from a mutual undertaking into a mechanism of one-way transfer. Support and division that ought to rest on genuine need instead operates as a reward for exit. The institution begins to function less like a covenant and more like an instrument of redistribution, an incentive to take rather than to keep together. What was meant to protect a dependent spouse in real need becomes, in the hands of a spouse who simply prefers to leave, a lever for extracting the wealth the other built.

The distortion has fallen with particular weight on men, through no design of theirs and by a simple failure of the law to keep pace. No-fault arrived at the same historical moment that women entered the workforce in large numbers, yet the support and alimony assumptions built for a single-earner world were not adjusted to match. Community-property and alimony doctrine developed out of an assumption, itself resting on a Christian and common-law inheritance, that one spouse would need protection because women remained, to a large extent, economically dependent. That assumption may once have justified generous transfer rules. It does not automatically justify the same rules once both sexes can and do earn in the marketplace, and once the exit that triggers the transfer requires no cause at all. The law updated the entry into no-fault without updating the exit obligations that had been calibrated to a very different, single-earner world. The result is a spouse who may be divorced without cause, separated from his children, and divested of the wealth he spent years creating, all on the unilateral decision of the other party and with no wrong alleged against him. This is not a plea for sympathy. It is an observation about incentives, and the incentives are now widely understood.

State and federal policy compound the distortion rather than correct it. Certain jurisdictions, Florida among them, have historically paired permissive divorce law with tax and support rules that make filing for divorce, or remaining formally unmarried while cohabiting, more financially advantageous than remaining married, and federal and state welfare and benefit calculations have long done the same, in some cases reducing a household's benefits precisely because a marriage certificate exists. A legal system that first removes cause from the ground for divorce and then attaches a financial reward to filing has not created a neutral marketplace of choices. It has built an incentive structure that pushes toward dissolution from more than one direction at once.

One increasingly common response to this incentive structure, heard across a wide swath of online commentary aimed at young men, is simply to counsel avoidance, to forgo marriage altogether and treat every legal protection the institution once offered as a trap rather than a benefit. That response is understandable given the incentives described above, but it does not solve the underlying problem. It merely accepts the premise that marriage cannot be made trustworthy again and abandons the institution instead. The interest this proposed bill protects is not the interest of any one spouse in a better bargaining position. It is the interest, shared by the whole of society, in the next generation, since it is marriage, not any substitute for it, that has reliably supplied the stable household in which children are conceived, born, and raised. A strategy of mass avoidance may be individually rational under present law. It is not a solution to the problem of progeny, and a Legislature concerned with birth rates and family formation should treat the avoidance movement as a serious symptom to be addressed by restoring trust in the institution, not as a lifestyle choice to be shrugged at.

The disincentive is no longer only cultural; it is now given in dollars-and-cents advice. Couples are increasingly counseled, sometimes by their own financial advisers, accountants, and welfare agents, that marrying will cost them, and they decline to marry or opt for divorce on paper on that reasoning even where an older generation would have regarded the choice as a loss rather than a calculation. When the tax and benefit code penalizes the marriage certificate and the divorce code strips the certificate of its protective force, the prudent response is to forgo the institution, and a growing number of young people now do exactly that.

Young men have learned the terms of the arrangement, and many are rationally declining it. This is not a failure of character. It is a rational response to a legal framework that has stripped marriage of the protections it once offered the investing party while leaving the risks in place. When the most committed potential participants opt out, the effects run past the individual household to the society. Marriage rates fall, first marriages come later or not at all, household formation slows, and birth rates decline. The nations that pioneered the disposable marriage, from the early Soviet experiment to the present, show the pattern with grim consistency, fertility far below replacement and a social fabric strained by fragmentation. A reform that restores a measure of security to the marriage bargain is, among other things, a demographic and social-stability measure.

17. No-Fault Is Not a Modern Invention

The defenders of unilateral no-fault divorce present it as a modern humane advancement, a discovery of the twentieth century. It is nothing of the kind. Dissolution at the will of one party is one of the oldest arrangements in the record of marriage law, and its history is cyclical. It appears, it produces disorder, it is restrained, the restraint decays, and it appears again under a new name. What is modern is only the vocabulary.

Rome ran the full cycle. Under the free marriage of the late pagan Republic a spouse could obtain a divorce with a bare formula meaning that divorce became casual and common. Seneca observed that illustrious women had begun to number the years of their lives by the number of their husbands, a serial polygamy dressed in legal form. Augustus tried to restrain the disorder by statute, and the restraints eroded. Constantine in the year 331 imposed penalties on unilateral divorce except in enumerated cases, and those restrictions too decayed. Justinian tightened and then the tightening later gave way. Restrictions come and go. The underlying temptation to make marriage dissoluble at one party's pleasure recurs in every age. This is not an endorsement, but rather an observation of cyclical history; and one that speaks to the correlation between an ordered and disordered period in time.

Islamic sharia law preserves the clearest historical analogue in the institution of talaq, the husband's unilateral repudiation, and above all in the *triple talaq* that takes effect immediately upon one party's pronouncement (the husband). It shares every essential feature of Texas' insupportability procedure. It is initiated by one party alone, requires no cause and no proof of wrong, provides the other party no defense, and takes effect once the declaration has been made. In 2017 the Supreme Court of India, in Shayara Bano v. Union of India, struck down *triple talaq* as manifestly arbitrary, a capricious and whimsical way of dissolving a marriage, and the Indian Parliament followed in 2019 by officially ending the practice. The reasoning applies with equal force to the American doctrine of insupportability. It is arbitrary to let one party break a marriage whimsically and capriciously. India, as the largest democracy in the world, has already struck down its equivalent of unilateral no-fault. The point is simple. This is not innovation. It is the recycling of a very old arrangement, and where societies have looked at it clearly, they have restrained it.

One point about talaq is often mistaken for a defense of American no-fault. The historical injustice of the husband's unilateral repudiation was that only one of the sexes could dissolve the marriage at will while the woman was bound. It is tempting to say that American no-fault cured that asymmetry by extending the same power to the wife, so that now either spouse may file. But equalizing an arbitrary power is not the same as

curing it. Giving both sexes the capricious authority that was formerly the husband's alone does not abolish the arbitrariness. It doubles it. Where once one of the sexes held a whimsical power of dissolution over a bound partner, now both sexes hold it over the other, and the marriage bond is rendered defeasible at the unilateral pleasure of whichever spouse tires of it first. That is not equality achieved by lifting the wronged party up. It is equality achieved by lowering both sexes into the same arbitrary condition. The just correction is not to spread the power of arbitrary exit evenly, but to withdraw it, which is precisely what a mutual-consent requirement does for the no-fault ground while leaving every publicly recognizable grievance its own evidentiary remedy.

18. The Family-Abolition Project. Who Actually Wants This, and Why

There is a further layer to this history that is rarely spoken of in the polite defense of no-fault, and it deserves to be exposed. A definite intellectual tradition has advocated the dissolution of marriage and the family society as such, not as a regrettable byproduct of liberalized divorce but as a deliberate objective, and unilateral divorce has been one of its chosen instruments. This is documented intellectual history.

Karl Marx and Frederich Engels stated the aim without embarrassment. *The Communist Manifesto* answered its own rhetorical question, abolition of the family, and defended it as the natural consequence of abolishing private property, treating the bourgeois family as a mechanism for transmitting property rather than a natural institution. Engels developed the claim in *The Origin of the Family, Private Property and the State*, arguing that monogamous marriage arose from the economic need to secure inheritance and would pass away with the property system that produced it. Alexandra Kollontai turned the theory into a program, urging that the State itself absorb the functions of the household so that the family would wither, and teaching the worker-mother to draw no line between *yours* and *mine* but to remember that there are only *our* children.

The program was tried. The Soviet Family Code of 1918, drafted by Alexander Goikhbarg, established unilateral divorce on the request of either spouse called "irretrievable breakdown," registered at an office with no proceeding and often with no notice to the other party, the practice that became known as divorce by postcard. Goikhbarg said openly that the purpose was transitional, to destroy the old family structure under Orthodox Christianity so that a new order could emerge from its ruins—the "soviet man." The consequences were catastrophic by any measure. Divorce rates soared, millions of homeless children roamed the cities, women became impoverished, men fell into alcoholism, and the social costs mounted until Joseph Stalin curbed some of the liberalization in 1936 because a State that intends to survive needs stable

households. The demographic tail of that experiment is still visible in Russia's divorce and fertility figures a century later.

The critique did not die with the Soviet rollback. It migrated into Western academic culture through the Frankfurt School and surfaced in the 1960s as the theoretical frame for the era's attack on the family, re-describing the household as a site of oppression and abuse rather than of formation and love. The line runs forward to the present, to the open contemporary literature that argues for family abolition by name. The point of exposing this is not to claim that everyone who supports no-fault shares these aims. The point is that the instrument was designed, by some of its most sophisticated advocates, to do exactly what it has done, and that a reform restoring mutual consent is a modest and defensible response to a project that was never modest about its ambitions.

The contemporary literature is explicit and easy to name. Shulamith Firestone called for dissolving the biological family in *The Dialectic of Sex* (1970); Sophie Lewis argues the case by its very title in *Abolish the Family* (2022); and M. E. O'Brien sets out a program for it in *Family Abolition* (2023). There are many others than this. These are widely reviewed works, not fringe pamphlets, and each treats the hollowing of marriage and divorce law as a step toward the end it seeks.

There is also a nearer and more profiteering interest that sustains the present regime. The elimination of conduct-based grounds did not reduce divorce litigation. It moved the battleground from the grounds, which are now automatic, predetermined, and mandatory, to custody and property, which are now wide open. An entire cottage industry has arisen from the guaranteed-divorce regime no-fault created, and the inevitable and ongoing disputes that follow. Profits from that volume, and the highly organized Family Law lobby (i.e. The Texas Family Law Foundation among many others) has repeatedly mobilized to defeat reforms that would reduce divorce rates and create barriers to exit. One need not decide how much weight to give this to notice that the coalition defending unilateral exit is not composed only of idealists but practitioners and merchants as well (divorce attorneys).

19. Objections and Answers

Objection. Requiring consent would trap victims of abuse, who often cannot gather evidence to prove a fault ground.

Answer. This is the most frequent objection and it deserves a direct and unhurried answer. The proposed bill does not recreate a fault-only regime. It restores and preserves every fault and separation ground requiring evidentiary misconduct. A victim of abuse can unilaterally initiate divorce under the cruelty ground in Section 6.002 or another fault ground, obtain a protective order under Title 4 independently of the divorce ground, and keep the waiting-period waiver. Abuse is cognizable as domestic violence properly defined, and Texas already permits an unequal, just-and-right property division for misconduct under Section 7.001. The reform at hand withdraws only the unilateral no-fault path for one party acting alone. It withdraws nothing from a spouse who has a publicly recognizable reason to leave.

The evidentiary version of the objection, that a victim in the 1970s often could not gather proof sufficient to meet a fault standard, was perhaps problematic in its time, and it is one of the strongest historical arguments for the original introduction of no-fault. It does not carry the same force today. The evidentiary burden that made fault findings difficult a half century ago has fallen dramatically with the spread of technological gadgets and recording devices carried in every pocket, text message and call logs, home security and doorbell cameras, and electronic medical and law-enforcement records, all generated automatically in the course of ordinary life and available to a party who never has to plan for or stage their collection. Gathering evidence of genuine abuse or domestic violence today requires far less effort and far less foresight than it did when the fault system was abandoned. An argument for eliminating all standards because evidence was once hard to gather is much weaker once the difficulty that motivated it has substantially disappeared due to technology.

There is also a more fundamental problem with treating Section 6.001 as a domestic-violence safeguard at all. The statute makes no distinction whatsoever between the victim and the perpetrator. Either spouse may file, for any reason or for no reason, and the court asks nothing about who did what to whom. A regime that is genuinely indifferent to which party is the abuser and which is the abused cannot coherently be defended as a protection for abuse victims specifically, since it protects the perpetrator's unilateral exit exactly as readily as the victim's. If the State's true concern were protecting victims, the sound response is not a universal, cause-free exit available to abuser and abused alike. It is a fault ground built for the purpose, with an evidentiary threshold calibrated to what victims can realistically produce today. The legislative

drafter should therefore consider two concrete improvements alongside this proposed bill, strengthening the existing cruelty ground or creating a clearly defined family-violence ground with a stated, modest evidentiary floor, so that a genuine victim has a fair, speedy, fault-based, and fully viable path that does not depend on the other spouse's consent, while a bare and unsubstantiated allegation remains distinguishable from a proven one.

Objection. *Bargaining in the Shadow of the Law* (study) shows that unilateral divorce saved lives, so any rollback will cost them.

Answer. The Stevenson and Wolfers study of 2006 is the paper most often cited for this claim, and it does not support the objection to this proposed bill. It should be addressed head-on, because it is so frequently referred to, whose findings have been widely overstated by others. Several points, taken together, dissolve its use against mutual-consent reform.

- **It measures the wrong comparison.** The study compares a fault-only regime to a unilateral no-fault regime. It says nothing about a regime that, like this proposed bill, keeps every fault and separation exit and requires consent-only for the no-fault track. On the study's own logic the life-saving mechanism is the availability of an exit for the endangered spouse. This bill keeps that exit fully intact. The study therefore cannot speak to it, and citing it against this bill is a category error.
- It measured violence inside conjugal households, not the frequency of victimization in the population. The domestic-violence findings were drawn from surveys of violence within intact, co-residing married couples. The study did not measure, and cannot speak to, the overall frequency of abuse and victimization among women generally, including women abused by dating, informally cohabitating, or non-cohabiting partners who were never subject to any divorce law at all. This matters because the objection assumes the mechanism is that marriage traps victims who cannot otherwise escape. But escape does not depend on the divorce ground. A victim can separate immediately, obtain a protective order under Title 4, and divorce on the cruelty or separation ground, all of which this proposed bill preserves in full and none of which requires the abuser's consent. The real policy question is how to reduce the frequency of abuse and protect its victims, and the tools for that, protective orders, separation, and a fault-based exit, are left entirely intact. A study about who can obtain a no-fault divorce inside a marriage is simply not a study about how often abuse occurs or how victims are protected.
- **Its own timing evidence undercuts causation.** The authors candidly report that the decline in women murdered by intimate partners appears to have begun before the law changed, a preexisting downward trend, and they concede the timing is, in their word, worrying and that the reader is left to judge whether the drop predated the reform enough to undermine the result. A pre-trend that precedes the

treatment is the classic signature of a spurious correlation. The authors deserve credit for disclosing it. Honesty about a weakness does not cure the weakness.

- **The homicide results are fragile and self-limiting.** For men murdered the estimates are imprecise and swing across specifications, admitting large effects in either direction, and a companion analysis by Thomas S. Dee finds an increase in husbands killed. The authors themselves decline to draw strong conclusions on homicide. A body of results that cannot sign its own coefficient for half the population is not a foundation for sweeping causal claims.
- **Correlation is doing the work that causation is asked to do.** The design is a state panel with fixed effects, which detects association between the timing of law changes and the timing of rate changes. The 1970s and 1980s were a period of falling female suicide and shifting homicide for many reasons unrelated to divorce law, including the expansion of women's economic independence, shelters, and policing of domestic violence. The study cannot exclude these, and its placebo and lead-lag checks, while thoughtful, leave the fundamental identification resting on an assumption that nothing else moved on the same schedule. That assumption is not proof.
- Even taken at face value, it is an argument for an exit, not for a unilateral no-fault exit. The paper's theoretical engine is the bargaining power that a credible threat to leave gives an endangered spouse. A fault ground for cruelty, a protective order, and a separation exit all supply exactly that credible threat. Nothing in the mechanism requires that the exit be available without cause to the party who is not endangered. This proposed bill preserves the threat for the endangered spouse and removes only the unilateral no-fault option for the spouse who has no grievance.

Answer. In short, the study's best reading is that a battered spouse must have a real way out. The correlation found between suicide/homicide and changing divorce laws cannot actually establish causation. This proposed bill preserves several ways out of an abusive marriage through every fault-based and separation ground. The paper provides no evidence that also permitting a no-fault, no-consent exit for the non-endangered spouse saves a single life, and its own data on timing and on male homicide caution strongly against treating its correlations as settled causation.

Objection. This chains an unwilling spouse to a dead marriage.

Answer. No one is chained. The spouse who wants out may leave on any fault ground the moment a ground exists, and may leave on the separation ground after the statutory period regardless of the other's wishes. What the proposed bill withdraws is only the power to erase, by unilateral fiat and without cause, the other party's consent to a status they jointly created. In order for civil marriage to retain any meaningful content to its status at all, it cannot permit dissolution on the basis of transient feelings. And this is, in fact, what most people expect from a civil marriage when they enter into it.

Objection. You are imposing religious morality.

Answer. The reform imposes nothing on those who want a freely dissoluble bond, who remain free to cohabit or arrange some other private agreement like dating, courtship, or friends-with-benefits. It declines to strip binding permanence from the civil status of marriage. The charge also proves too much, since a State that already forbids polygamy, child marriage, and incestuous unions regardless of consent plainly draws substantive lines around marriage and always has. Drawing a line at the exit is no more an establishment of religion than drawing the lines that already exist at the entrance.

Objection. There is a liberty or freedom-of-association right to unilateral divorce, and regulation of marriage cannot extend to denying that right.

Answer. No court has recognized a federal constitutional right to divorce on demand, and Sosna v. Iowa, 419 U.S. 393 (1975), treats access to divorce as a matter of state regulation rather than a fundamental entitlement. The point is worth sharpening further. The State's regulatory authority over marriage has never been understood to include a competing individual right to divorce-on-demand, because divorce itself has never existed as a common-law right at all. Even in common-law jurisdictions there was, historically, no such thing as a common-law divorce. Dissolution of marriage has always been a creation of positive law—a creature of the state—first by parliamentary or legislative bill and later, from roughly the mid-1800s to the mid-1900s, by general divorce statutes that regulated the conduct required to obtain one. A power that exists only because a legislature created it can be conditioned, narrowed, or reshaped by that same legislature, and a State that has always defined the terms of exit cannot be said to be taking away a preexisting liberty when it changes those terms. The freedom not to associate informally is not the same as a power to unilaterally terminate a formal legal status one voluntarily entered, a status in which a spouse and children hold real interests. One who wants a purely will-based arrangement is entirely free to choose one outside of civil marriage.

Objection. The grounds already cover genuine wrongs, so the reform accomplishes nothing.

Answer. As previously mentioned, as long as unilateral no-fault exists, other grounds are obsolete through disuse. This reform touches only the no-fault track, where by definition no wrong is alleged. Its purpose is to restore the mutual character of the commitment and the judicial character of the proceeding, not to remove any enumerated exit. That the grounds already exist is the reason the reform traps no one, not a reason it is pointless.

Objection. People should not have to air private matters in public, and the State should not force anyone to stay married.

Answer. Both framings mislead. Many legal proceedings require disclosure of private matters, and marriage has always been recognized as a public institution whose dissolution has public consequences for children, property, and the community. And divorce is not the State standing aside. It is a positive act of state power, since only a court order dissolves the marriage status. The question is never whether the State will force people to stay married. It is what standard the State applies when it exercises its own power to dissolve. A fault or mutual-consent standard supplies a public basis for that exercise. Unilateral no-fault supplies none, and enables individual private will to command the machinery of the court.

Mutual Consent for No-Fault Divorce Act

Description, Legislative Intent, Findings, and Fiscal Note

DESCRIPTION AND LEGISLATIVE INTENT

Current law. Section 6.001, Texas Family Code, makes a no-fault divorce a unilateral, non-contestable entitlement. The decree is mandatory once one party alleges insupportability (Cusack v. Cusack, 491 S.W.2d 714 (Tex. Civ. App. 1973)), evidentiary facts are stricken from the pleadings (Section 6.402(c)), and the other spouse's consent is neither required nor considered. The fault and condition grounds in Sections 6.002-6.007 already allow one spouse to divorce provided there are evidentiary findings.

The Act. This Act amends Section 6.001 to require the joint petition of both spouses for a divorce granted without regard to fault, while leaving every fault and condition ground fully available. It preserves the waiver of the waiting period (Section 6.702(c)) and protective orders under Title 4. As amended, Section 6.001 reads: "On the joint petition of both parties to a marriage, the court shall grant a divorce without regard to fault."

Intent. The Legislature intends to align the no-fault ground with the stated policy of this State to preserve and uphold each marriage (Section 1.101), to restore a real judicial proceeding when the ground is contested, to preserve a limited set of enumerated pathways to exit for a spouse with a publicly recognizable reason to leave, and to do so within the existing divorce docket. The Act does not make divorce unavailable, trap any spouse beyond what is expected of a civil marriage, create a new proceeding or cause of action, or grant new rulemaking authority. It applies only to suits filed on or after September 1, 2027.

LEGISLATIVE FINDINGS (Section 1 of the Act)

(1) A marriage is entered by the mutual consent of both parties, and its dissolution without regard to fault should likewise require the consent of both parties.

(2) The fault and condition grounds in Sections 6.002 through 6.007 remain available to a single party, so that no spouse is compelled to remain in a marriage marked by cruelty, adultery, abandonment, felony conduct, family violence, or prolonged separation.

(3) The regulation of marriage and its dissolution lies within the plenary authority of the State (Maynard v. Hill, 125 U.S. 190 (1888)), and no court has recognized a federal right to unilateral divorce on demand (Sosna v. Iowa, 419 U.S. 393 (1975)).

FISCAL NOTE

No significant fiscal implication to the State or to units of local government is anticipated. If anything, the reduction of divorces will result in fewer judicial resources expended. The Act creates no new cause of action, proceeding, agency duty, or rulemaking authority, changes no filing fee or other revenue, and operates within the existing divorce docket. The official fiscal note is prepared by the Legislative Budget Board.

MUTUAL CONSENT FOR NO-FAULT DIVORCE ACT

90th Legislature H.B. No. _____

A BILL TO BE ENTITLED

AN ACT

relating to the requirement of mutual consent for the granting of a divorce without regard to fault.

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF TEXAS:

Drafting convention: underlined *text is added;* ~~struck-through~~ *text is deleted; unmarked text is existing law.*

SECTION 1. LEGISLATIVE FINDINGS. The legislature finds that:

(1) A marriage is entered by the mutual consent of both parties, and the dissolution of a marriage without regard to fault should likewise require the consent of both parties.

(2) The fault and condition grounds in Sections 6.002 through 6.007 remain available to a single party, so that no spouse is compelled to remain in a marriage marked by cruelty, adultery, abandonment, felony conduct, family violence, or prolonged separation.

SECTION 2. Section 6.001, Family Code, is amended to read as follows:

Sec. 6.001. INSUPPORTABILITY. On the joint petition of ~~either party~~ both parties to a marriage, the court ~~may~~ shall grant a divorce without regard to fault. ~~if the marriage has become insupportable because of discord or conflict of personalities that destroys the legitimate ends of the marital relationship and prevents any reasonable expectation of reconciliation.~~

SECTION 3. PRESERVATION OF FAULT AND FAMILY-VIOLENCE REMEDIES. Nothing in this Act limits the right of a party to obtain a divorce on a ground under Sections 6.002 through 6.007, Family Code, on that party's petition; to obtain a waiver of the waiting period under Section 6.702(c); or to apply for a protective order under Title 4, Family Code.

SECTION 4. APPLICABILITY. The change in law made by this Act applies only to a suit for dissolution of a marriage filed on or after the effective date of this Act. A suit filed before that date is governed by the law in effect on the date of filing, and that law is continued in effect for that purpose.

SECTION 5. EFFECTIVE DATE. This Act takes effect September 1, 2027.